

Justification for Other Than Full and Open Competition, Extension

U.S. General Services Administration

GSA Region 9 Leasing

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

PROJECT NUMBER: **4CA1689**

Agency Name: [REDACTED]

1. NATURE AND/OR DESCRIPTION OF ACTION BEING APPROVED.

The General Services Administration currently leases 385 structured, reserved parking spaces at Horton Plaza, 324 Horton Plaza, San Diego, CA under lease number LCA00262 for [REDACTED]. The current lease has a rental rate of \$924,000.00 per year (\$2,400.00 per space per year) and expires 5/31/26. Approval is requested to negotiate a lease extension with the incumbent Lessor without full and open competition for continued occupancy at this leased location. The procedures for pursuing a lease extension are detailed in GSAR 570.405: Lease extensions.

2. DESCRIPTION OF THE SUPPLIES OR SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS (INCLUDING ESTIMATED VALUE).

The government requires an extension of the current lease for 24 months to commence on 6/1/2026. The estimated cost of this lease extension is [REDACTED] per space per year [REDACTED] parking space per month) for an annual cost [REDACTED] and a total contract value [REDACTED].

3. IDENTIFICATION OF STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION.

41 U.S.C. 3304(a)(1): Only one responsible source and no other supplies or services will satisfy agency requirements. This statutory authority is implemented through GSAR 570.405. In accordance with GSAR 570.405, use of the sole source authority is appropriate when the government experiences a delay in acquiring replacement space.

- ☐ The agency occupying the leased space is scheduled to move into other Federally controlled space, but encounters unexpected delays in preparing the new space for occupancy
- ☒ The government encounters unexpected delays outside of its control in acquiring replacement space. There is limited bulk parking available in the immediate area and the lessor does not want to enter into a long-term lease as they are currently redeveloping the parking garage.
- ☐ The government is consolidating various agencies and the contracting officer needs to extend the terms of some leases to establish a common expiration date
- ☐ The agency occupying the space has encountered delays in planning for a potential relocation to other federally controlled space due to documented organizational, financial, or other uncertainties

Investigation for [redacted] in [redacted] [redacted]
[redacted] [redacted] [redacted]

[redacted]
[redacted]

[redacted]

[redacted] [redacted]

4. DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR NATURE OF THE ACQUISITION REQUIRES THE USE OF THE AUTHORITY CITED.

It is in the best interest of the Government to remain at the current location during the extension period. GSA is currently working on the long-term parking lease acquisition [REDACTED] continuing to develop their parking requirements. In addition, this parking lease houses the overflow tenants from the Schwartz Federal Building.

Award to other than the current Lessor would require relocation of the entire requirement and would cause [REDACTED] move and replication costs that would not be recovered through competition.

5. DESCRIPTION OF EFFORTS MADE TO ENSURE THAT OFFERS ARE SOLICITED FROM AS MANY POTENTIAL SOURCES AS IS PRACTICABLE.

In accordance with GSAM 570.106(d) and 570.405, an advertisement is not required for extensions.

6. DEMONSTRATION BY THE CONTRACTING OFFICER THAT THE ANTICIPATED COST TO THE GOVERNMENT WILL BE FAIR AND REASONABLE.

Recent market research conducted by the Lease Contracting Officer in San Diego, CA showed the rental rate within the market area ranges from [REDACTED] with per space.

Therefore, the anticipated rental rates for this lease extension of \$230.00 per month per space, are within the current market range for this submarket and are deemed fair and reasonable by the GSA Lease Contracting Officer. However, market research has indicated that the incumbent is the only parking facility within the delineated area that has sufficient available parking spaces to meet agency requirements.

7. DESCRIPTION OF MARKET RESEARCH CONDUCTED AND THE RESULTS.

On 2/12/25, market research was conducted using a survey of local parking providers. The market research showed the rental rate within the market area ranges from [REDACTED] per month per space. However, market research has indicated that the incumbent is the only parking facility within the delineated area that has sufficient available parking spaces to meet agency requirements.

8. OTHER FACTS SUPPORTING USE OF OTHER THAN FULL AND OPEN COMPETITION.

Remaining at the current location under a 24 month extension avoids a holdover and allows the Government to continue operations without disruption.

9. LIST OF SOURCES, IF ANY, THAT EXPRESSED, IN WRITING, AN INTEREST IN THE ACQUISITION.

N/A

10. STATEMENT OF ACTIONS, IF ANY, THE AGENCY MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION BEFORE ANY SUBSEQUENT ACQUISITION.

There are no systemic barriers to competition. If the agency has a continuing need for space upon lease expiration, GSA will follow all authorities, regulations and policies applicable to lease acquisition. Should there be remaining useful life in the Government's tenant improvements, the Government will consider the cost of moving from the existing location, and the cost to build out new space when deciding whether to undergo a competitive action.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Additionally, objective scrutiny will be given to the customer agency's mission and security requirements (if applicable) to eliminate unnecessary agency space requirements that may be deemed unduly restrictive.

11. CONTRACTING OFFICER CERTIFICATION.

By signature on this Justification for Other than Full and Open Competition, the GSA Lease Contracting Officer certifies that the award of a lease extension of 24 months for LCA00262 is in the Government's best interest and that this Justification is accurate and complete to the best of the GSA Lease Contracting Officer's knowledge and belief.


Date 3/31/2025

Guadalupe Flores, Lease Contracting Officer

12. PREPARER'S TECHNICAL CERTIFICATION.

I certify that the supporting data used to form the basis of this Justification is complete and accurate to the best of my knowledge and belief.

DocuSigned by:

Date 3/31/2025

Michael McClure, Leasing Specialist

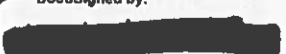
CONCUR:

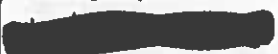
DocuSigned by:

Date 3/31/2025
Guadalupe Flores, READ, Branch Chief

Signed by:

Date 3/31/2025
Jessica L. Escobedo
R9 Leasing Advocate for Competition

DocuSigned by:

Date 4/2/2025
Pamela Collins, Director
Real Estate Acquisition Division

DocuSigned by:

Date 4/2/2025
Jordan Baker,
R9 Assistant Regional Counsel

DocuSigned by:

Date 4/2/2025
Amanda Sweeney
Deputy Regional Commissioner

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[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

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CONFIDENTIAL - SECURITY INFORMATION

APPROVED:

DocuSigned by:

A black rectangular redaction box covering the signature of Dan R. Brown.

Date 4/2/2025

Dan R. Brown, Head of the Contracting Activity
Regional Commissioner
Public Buildings Service
Pacific Rim Region

